

Line 4

Case Name: *Hassan Abpikar, et al. v. State Farm Insurance, et al.*

Case No.: 24CV436896

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant State Farm Mutual Automobile Insurance Company (sued as State Farm Insurance and State Farm Insurance Agency) (“Defendant State Farm” or “Defendant”) Defendant moves under Code of Civil Procedure Section 2023.030, and the inherent power and authority of the court to manage legal proceedings, for terminating sanctions or, in the alternative, issue and monetary sanctions against Plaintiffs Hassan Abpikar and Albert Nichols (“Plaintiffs”). Notice of Motion (the “Motion”) at 2:5-9 (filed: July 22, 2025). The Motion is made on the ground that Plaintiffs have engaged in misuse of the discovery process by willfully failing to comply with the Court’s March 14, 2025 Orders to pay Defendant State Farm sanctions and to provide verified, Code-Compliant discovery responses. *Id.* at 2:9-11.

The Motion came on for hearing on September 11, 2026, at 9:00 AM in Department 16. After reviewing the moving papers, including the Declaration of Alexandria C. Carraher in Support of Defendant’s Motion (“Carraher Decl.”) plus its Exhibits and Defendant’s Separate Statement in Support of Defendant’s Motion, and the Opposition papers, including the Declaration of Hassan Abpikar in Support of Opposition plus its Exhibits,⁵ and Defendant’s Reply papers, including the Declaration of Stephanie J. Rothberg in Support of Defendant’s Reply in Support of Motion (“Rothberg Decl.”) plus its Exhibits and Defendant’s Request for Judicial Notice In Support of Defendant’s Reply in Support of Motion, and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Relevant Facts & Procedural Posture

On April 29, 2024, Plaintiffs filed this civil action in Santa Clara County Superior Court, Case No. 24CV436896, against Defendants State Farm, American Honda Financial Corp. and GAP Insurance. Complaint (filed: Apr. 29, 2024).

⁵ The Court has received but, in the broad exercise of its discretion chooses to give no weight whatever to, the Request for Judicial Notice filed by Plaintiffs on September 9, 2026, two days before this hearing, because it is an untimely, unauthorized, and improper sur-reply brief that does not ask for Judicial Notice of any matter properly noticeable under California law but rather indulges in sustained and scurrilous *ad hominem* attacks on defense counsel, whom they call “**Mr. Honest Legal Thief . . . you are NOT even a MAN. . . .**” Plaintiffs’ Request for Judicial Notice at p. 4 (emphasis in original).

On June 21, 2024, Defendant State Farm served Code-Compliant discovery requests on Plaintiffs, specifically: Form Interrogatories-General, Set One; Special Interrogatories, Set One; Request for Admissions, Set One; and Requests for Production, Set One (collectively, “Defendant’s Discovery Requests”). Carraher Decl. at ¶ 2.

The deadline for Plaintiffs to serve verified Code-Compliant responses to Defendant’s Discovery Requests was July 29, 2024, *but* Plaintiffs failed to serve any responses by that deadline. Carraher Decl. at ¶¶ 3-4.

Because Plaintiffs failed to respond to Defendant’s Discovery Requests, on September 25, 2024, Defendant filed a Motion to Compel Responses and For Sanctions against Plaintiff Hassan Abpikar, and a Motion to Compel Responses and For Sanctions against Plaintiff Albert Nichols.

Both Motions to Compel were heard before Judge Roberta Hayashi on February 26, 2025, where Plaintiffs and Defendant were given a full and fair opportunity to be heard. After considering all arguments, the Court adopted its tentative rulings Granting the Motion to Compel and for Sanctions against Plaintiff Hassan Abpikar *and* Granting the Motion to Compel and for Sanctions against Plaintiff Albert Nichols. Minute Orders at p. 1-2 (filed: Feb. 26, 2025).

The formal written Orders Granting these Motions to Compel and for Sanctions were filed and served by the Clerk of the Court on all parties on March 14, 2025. Order Granting State Farm’s Motion to Compel Plaintiff Hassan Abpikar to Respond to Discovery and for Sanctions at p. 1 (filed: March 14, 2025); Order Granting State Farm’s Motion to Compel Plaintiff Albert Nichols to Respond to Discovery and for Sanctions at p. 1 (filed: March 14, 2025) (collectively, the “March 14, 2025 Orders”).

The March 14, 2025 Orders were crystal clear:

As to Plaintiff Abpikar, “the Court hereby orders that in not more than twenty (20) days from Notice of entry of Order, Plaintiff Abpikar shall file and serve, without any objections being asserted thereto, fully code-compliant responses to Defendant’s Discovery Requests, which have been verified under penalty of perjury by Plaintiff Abpikar. . . . [A]ttorneys’ fees and costs for the preparation, filing and briefing of this motion shall be paid by Plaintiff Abpikar to Defendant’s counsel in the amount of \$2,715. . . Failure to comply with this Order of the Court may result in further sanctions, including . . . terminating sanctions[.]” Order Granting State Farm’s Motion to Compel Plaintiff Hassan Abpikar to Respond to Discovery and for Sanctions at 2:22-25, 3:3-7.

As to Plaintiff Nichols, “the Court hereby orders that in not more than twenty (20) days from Notice of entry of Order, Plaintiff Nichols shall file and serve, without any objections being asserted thereto, fully code-compliant responses to Defendant’s Discovery Requests, which have been verified under penalty of perjury by Plaintiff Nichols. . . . [A]ttorneys’ fees and costs for the preparation, filing and briefing of this motion shall be paid by Plaintiff Nichols to Defendant’s counsel in the amount of \$2,165. . . Failure to comply with this Order of the Court may result in further sanctions,

including . . . terminating sanctions[.]” Order Granting State Farm’s Motion to Compel Plaintiff Albert Nichols to Respond to Discovery and for Sanctions at 2:12-16, 2:22-24, 3:1-2.

In this Motion, Defendant State Farm asserts that Plaintiffs violated the March 14, 2025 Orders in multiple ways: by failing to pay the court-ordered sanctions, by failing to verify under penalty of perjury any of their discovery responses, *and* by failing to serve Code-Compliant responses for reasons set forth in detail—discovery response by discovery response—in Defendant’s Separate Statement in Support of Motion for Terminating Sanctions at 2:2-53:1; *see also* Carraher Decl. at ¶¶ 14-29 & Ex. C thereto (setting forth multiple examples why Plaintiff’s March 17, 2025 responses were not Code Compliant); Rothberg Decl. at ¶4 (“the responses were unverified and failed to comply with the Code. Moreover, both Plaintiffs failed to pay State Farm sanctions pursuant to the Court’s orders.”).

On May 6, 2025, Defendant State Farm sent a meet and confer letter to Plaintiffs regarding their non-Code-Compliant, unverified discovery responses and failure to pay the Court-Ordered sanctions. Carraher Decl. at ¶¶ 25. Plaintiffs failed to respond. *Id.*

Next, on July 22, 2025, Defendant State Farm filed this Motion for Terminating Sanctions because Plaintiffs willfully ignored the March 14, 2025 Orders by failing to pay the Court-Ordered sanctions, by failing to verify their discovery responses, and by failing to provide Code-Compliant responses. Motion at 2:10-11. The Motion was initially set for hearing on February 20, 2026.

Having been served with the Motion on July 22, 2025, two days later on July 24, 2025, Plaintiffs filed a Request for Dismissal of the entire action without prejudice. Request for Dismissal (filed: July 24, 2025). The Clerk entered dismissal on that date, July 24, 2025, and took the Motion set for February 20, 2026 off calendar.

Next, on January 30, 2026, Defendant Farm filed an ex parte application to restore its Motion for Terminating Sanctions on the ground that Plaintiffs filed the July 24, 2025 Request for Dismissal to evade compliance with their Court-Ordered discovery obligations and to evade paying the Court-Ordered sanctions. Ex Parte Application at 2:14-15 (filed: Jan. 30, 2026). In light of the well-established law that plaintiffs cannot defeat the trial court’s power to enforce its discovery orders by dismissing their case, the Court granted this ex parte application in an order signed and dated by the undersigned Judge on February 9, 2026, and filed by the Clerk on February 13, 2026, which set the hearing on this Motion for July 31, 2026. Order Granting Defendant’s Ex Parte Application to Restore Motion for Terminating Sanctions To New Hearing date (filed: Feb. 13, 2026).

On February 12, 2026, Plaintiff Abpikar filed a petition for bankruptcy. Rothberg Decl. ¶ 7.

Next, on February 25, 2026, Plaintiff Abpikar filed an ex parte application to vacate the “void order” that set this Motion for July 31, 2026, on the grounds that there was a bankruptcy stay. Ex Parte Application at p. 1 (filed: Feb. 25, 2026).

The next day on February 26, 2026, the Court DENIED Plaintiff's ex parte application, explaining in detail why "its Order effective *nunc pro tunc* February 9, 2026" was *not* void. Order Denying Ex Parte Application at 1:19-4:10 (filed: Feb. 26, 2026). Still, to be fair to all sides and to show comity to the federal system, the Court in the exercise of its discretion in this same Order chose to vacate without prejudice the July 31, 2026 hearing date on this Motion while making clear: "If and when the stay is lifted, State Farm is free to request a new hearing date on its Motion for Terminating Sanctions." *Id.* at 4:16-17

On March 26, 2026, Plaintiff Abpikar's bankruptcy action was dismissed. Rothberg Decl. at ¶ 9 and Ex. B thereto (dismissal of Abpikar's bankruptcy action).

The bankruptcy stay having been lifted, State Farm made an ex parte application on July 28, 2026 to reset the hearing on its Motion for Terminating Sanctions, which the Court granted in its Order filed and served on all parties on August 6, 2026, which gave notice to all that this Motion for Terminating Sanctions would be held today on September 11, 2026 at 9:00 AM in Department 16.

The day after Defendant State Farm on July 28, 2026 filed its ex parte application to reset the hearing on this Motion, Plaintiff Abpikar on July 29, 2026 filed another Notice of Bankruptcy Stay, on the grounds that he had filed yet another petition for bankruptcy on July 24, 2026. Notice of Bankruptcy Stay (filed: July 29, 2026); Rothberg Decl. at ¶ 11.

On August 5, 2026, Plaintiff Abpikar filed in federal bankruptcy court an Emergency Motion to Extend the Automatic Stay, which the federal court *denied* on August 10, 2026. Rothberg Decl. at ¶12 and Ex. C thereto (order denying Abpikar's request for an extension of the stay).

Legal Standards on Motion for Terminating Sanctions

Under Code of Civil Procedure Section 2023.010(g), "misuse of the discovery process" is "disobeying a court order to provide discovery." C.C.P. § 2023.010(g).

Under Code of Civil Procedure Section 2023.030(d)(3), "the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process. . . . (d) The Court may impose a terminating sanctions by one of the following orders: . . . (3) An order dismissing the action[.]" C.C.P. § 2023.030(d)(3).

Likewise, Code of Civil Procedure Section 2030.290(c), specifically in the context where a court grants an order compelling discovery responses, provides: "If a party then fails to obey an order compelling answers, the court may make those orders that are just, including the imposition of . . . a terminating sanction (commencing with Section 2023.010))." C.C.P. §2030.290(c).

"The power to impose discovery sanctions is a broad discretion subject to reversal

only for arbitrary, capricious, or whimsical action.” *R.S. Creative, Inc. v. Creative Cotton, Ltd.* (1999) 75 Cal. App. 4th 486, 496. Imposing terminating sanctions against Plaintiffs is appropriate where the Court find three facts:

Fact No. 1: Plaintiffs failed to comply with a Court Order for discovery;

Fact No. 2: The failure was willful;

Fact No. 3: Lesser sanctions like issue or evidentiary sanctions would not bring about compliance by Plaintiffs with their discovery obligations.

R.S. Creative, Inc., 75 Cal. App. 4th at 496-497; *see also Doppes v. Bentley Motors, Inc.* (2009) 174 Cal. App. 4th 967, 992-996 (abuse of discretion for court to *deny* terminating sanctions for serious discovery abuse including failure to comply with discovery orders).

Defendant State Farm’s Request for Judicial Notice

In support of its Motion for Terminating Sanctions, Defendant State Farm requests that the Court take Judicial notice under Evidence Code Sections 452(d) and 453, and California Rules of Court, Rule 3.1306(c), of the following four records of courts of record of the United States:

1. Bankruptcy Docket, *In re Hassan Abpikar*, U.S. Bankruptcy Court (N.D. Cal) Case No. 5:26BK50218.
2. Order of Dismissal, *In re Hassan Abpikar*, U.S. Bankruptcy Court (N.D. Cal.) Case No. 5:26BK 50218.
3. Exhibit 3: Bankruptcy Docket, *In re Hassan Abpikar*, U.S. Bankruptcy Court (N.D. Cal.) Case No. 26-51150.
4. Exhibit 4: Order Denying Motion to Extend Automatic Stay, *In re Hassan Abpikar*, U.S. Bankruptcy Court (N.D. Cal.) Case No. 5:26BK-51140.

Def. Request for Judicial Notice in Support of Reply in Support of Motion at 1:25-2:8.

In the broad exercise of its discretion, and by authority of Evidence Code Sections 452(d) and 453, the Court **GRANTS** Defendant State Farm’s Request and takes Judicial Notice of these four records of a court of record of the United States, which the Court finds is particularly appropriate here because these four documents are directly relevant to and vitiate Plaintiffs’ prime argument in their Opposition (at pp. 6-10 (filed: Aug. 21, 2026)) that a bankruptcy stay exists now that bars this Court from granting Defendant’s Motion for Terminating Sanctions now.

Analysis of the Motion for Terminating Sanctions

Resolution of this Motion is straightforward.

After carefully reviewing the record and each and every line of the discovery responses served by Plaintiffs on March 17, 2025 (Carraher Decl., Ex C., & Separate Statement in Support of Defendant’s Motion), and in the broad exercise of its discretion, the Court finds regarding **Fact No. 1** that Plaintiffs failed to comply with the March 14, 2025 Orders in multiple ways:

- By failing to pay Defendant the discovery sanctions Ordered by the Court on March 14, 2025;
- By failing to verify under penalty of perjury any of their discovery responses, *and*
- By failing to serve Code-Compliant responses; for the unverified responses that Plaintiffs did serve, they are not Code-Compliant because they are, *inter alia*, non-responsive, evasive, incomplete, and off point.

First, regarding payment of sanctions, the Court’s March 14, 2025 Orders were crystal clear: Plaintiff Abpikar was ORDERED to pay “\$2,715” for Defendant’s “attorneys’ fees and costs” for the Motion (Order against Abpikar at 3:3-5); Plaintiff Nichols was ORDERED to pay “2,165” for Defendant’s “attorneys’ fees and costs” for the Motion (Order against Nichols at 2:22-24). Plaintiffs violated those Orders by failing to pay Defendant any of those Court-Ordered sanctions. Rothberg Decl. at ¶ 22.

Second, regarding Plaintiff’s failure to provide verifications under penalty of perjury, in spite of the Court’s crystal clear Orders of March 14, 2025—“Plaintiff Abpikar shall file and serve . . . fully code-compliant responses to Defendant’s Discovery Requests, **which have been verified under penalty of perjury by Plaintiff Abpikar**” (Order against Abpikar at 2:23-25 (emphasis added)); ““Plaintiff Nichols shall file and serve . . . fully code-compliant responses to Defendant’s Discovery Requests, **which have been verified under penalty of perjury by Plaintiff Nichols**” (Order against Nichols at 2:12-16) (emphasis added))—*none* of the discovery responses of Plaintiffs were verified. Carraher Decl. ¶ 23 & Ex. C thereto (Plaintiffs’ unverified discovery responses).

And this failure by Plaintiffs to provide verification to these discovery responses as ORDERED by the Court is a serious misuse and violation of the discovery process by Plaintiffs because where, as here, a verification is required (indeed, ORDERED): “an unverified response is ineffective; **it is the equivalent of no response at all.**” California Practice Guide: Civil Procedure Before Trial at ¶ 8:1113 (emphasis added) (The Rutter Group, 2025 Ed.) (*citing Appleton v. Supr. Ct. (Cook)* (1988) 206 Cal. App. 3d 632, 636).

Third, regarding Plaintiffs’ failure to provide “**fully code-compliant responses** to Defendant’s Discovery Requests” as ORDERED by the Court (Order against Abpikar at 2:24 & Order against Nichols at 2:15) (emphasis added), the Court has reviewed each and every line of Plaintiffs’ discovery responses (Carraher Decl., Ex C., & Separate Statement in Support of Defendant’s Motion) and finds that they are riven and replete with multiple violations of the Code of Civil Procedure—simply put, they are not even close to being

Code-Compliant.

Here are a few examples, among many, of Plaintiffs' failure to provide Code-Compliant responses as ORDERED to Defendant's discovery responses.

Form Interrogatories. Under Code of Civil Procedure Sections 2030.210(a) and 2030.220(a)&(c), Plaintiffs had the duty to respond to each form interrogatory separately, in writing, and under oath, furnishing any and all information reasonably available to the party. But here, despite being ORDERED by the Court to provide Code-Compliant responses, Plaintiffs did not respond to the Form Interrogatories *at all* (Carraher Decl. at ¶ 16 and Ex. C thereto), thereby violating the Code of Civil Procedure and the Court's March 14, 2025 Discovery Orders.

Special Interrogatories. Under Code of Civil Procedure Sections 2030.210(a) and 2030.220(a)&(c), Plaintiffs had the duty to respond to each special interrogatory separately, in writing, and under oath, furnishing any and all information reasonably available to the party. But here, despite being ORDERED by the Court to provide Code-Compliant responses, Plaintiffs provided vague, incomplete, evasive, nonresponsive nonsense to multiple Special Interrogatories; e.g., for Plaintiff Nichols' responses to Special Interrogatories 4, 7, and 8, he copies and pasted without any differentiation responses that were off-point, off-topic, and unrelated to the request. Carraher Decl. at ¶¶ 18-19 and Ex. C at pp. 40-42. Likewise for Plaintiff Abpikar's responses to Special Interrogatories 3, 4, 7, 8, 9, 10, and 11—which were off topic and evasive. Carraher Decl. at ¶¶ 20-22 and Ex. C at pp. 3-6.

Requests for Production of Documents. Under Code of Civil Procedure Sections 2031.210-2031.230, Plaintiffs had the duty for each separate RFP to respond by stating:

(a) Defendants will comply with the RFPs—*and* then produce the documents and items responsive to each RFP;

(b) Defendants are unable to comply with the RFP because the requested documents and items have never existed; or

(c) after diligent search and reasonable inquiry, Defendants are unable to comply because the requested documents and items no longer exist or are no longer in his possession.

C.C.P. §§ 2031.210, 2031.220, 2031.230. But here, despite being ORDERED by the Court to provide Code-Compliant responses, *Plaintiffs produced no responsive documents whatever*. Carraher Decl. at ¶ 25 & Ex. C thereto. Instead, in several instances, Plaintiffs merely recite the same or substantially similar statement of facts that in most cases are not even related to the RFP. Carraher Decl. at ¶ 26 & Ex. C thereto. This is not Code-Compliant.

Requests for Admission. Under Code of Civil Procedure Sections 2033.210 and 2033.220, Plaintiffs had the duty for each RFA to answer the substance of it in a manner that is as complete and straightforward as the information reasonable available to the responding party permits; each answer shall (a) Admit so much of the matter involved in the request is true . . . (b) deny so much of the matter involved in the request as is untrue, or (c) specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge. C.C.P. §§ 2033.210, 2033.220. But here, despite being ORDERED by the Court to provide Code-Compliant responses, Plaintiffs failed to admit or deny the requests in a straightforward manner. Plaintiff Nichols admits things that are entirely off point; Plaintiff Abpikar responds to most RFAs by stating: “In sharp contrast to your question. . .” followed by the same recitation of the facts without clearly admitting or denying the RFA in a straightforward manner as *required by the Code*.

For all those reasons, the Court finds **Fact No. 1:** that Plaintiffs failed to comply with the Court’s March 14, 2025 Orders by failing—repeatedly and throughout their discovery responses—to provide Code-Compliant responses.

Regarding **Fact No. 2**, on whether Plaintiffs’ failure to comply was willful, the Court, after reviewing every one of Plaintiffs’ discovery responses—in which the Court finds a glaring pattern and practice of serial discovery violations by Plaintiffs where they fail repeatedly and deliberately and evasively to provide Code-Compliant responses in spite of being directly ORDERED to do so by the Court—*plus* taking into account that Plaintiffs violated the Court’s Order by failing to pay the sanctions, *plus* failed to provide any verifications for any of the discovery responses despite being directly ORDERED by the Court to do so, which is *the equivalent of no response at all*—the Court finds as a matter of fact that Plaintiff Abpikar and Plaintiff Nichols violation of the Court’s March 14, 2025 Orders was ***willful***.

So in the broad exercise of its discretion, the Court reasonably infers that Plaintiffs’ failure to comply with the March 14, 2025 Orders was willful from their pattern and practice of serial violations of that Orders identified in detail above.

Regarding **Fact No. 3**, whether imposition of lesser sanctions like issue or evidentiary sanctions would bring about compliance by Plaintiffs with their discovery obligations, the Court finds as a matter of fact that, unfortunately, lesser sanctions would *not* bring about Plaintiffs’ compliance in this case. The Court’s review of the voluminous record of Plaintiffs’ serial evasions and violations of the Court’s Order shows beyond any doubt that because Plaintiffs have failed to respond to such a broad range of authorized discovery requests on multiple issues in this case—despite being directly ORDERED to do so by the Court—that if the Court were now to impose lesser issue or evidentiary sanctions against Plaintiffs for their multiple, comprehensive, repeated discovery violations, it would not bring about their compliance—*because there would be almost nothing left of the case*. There would be few if any issues left to litigate; there would be little if any evidence that Plaintiffs could present to the jury at trial. So, given these extreme circumstances, imposing issue or evidentiary sanctions would *not* bring about Plaintiffs’ compliance but would rather end the case.

So, based on its review of all the record here, and in the broad exercise of its discretion, the Court finds as a matter of fact that lesser sanctions like issue or evidentiary sanctions would not bring about compliance by Plaintiffs with their discovery obligations.

Having now found based on its detailed review of the record these three facts—

Fact No. 1: Plaintiff failed to comply with a Court Order for discovery;

Fact No. 2: The failure was willful; and

Fact No. 3: Lesser sanctions like issue or evidentiary sanctions would not bring about compliance by Plaintiffs with their discovery obligations—

the Court has clear authority and broad discretion to impose terminating sanctions to dismiss this case with prejudice now, *R.S. Creative, Inc.*, 75 Cal. App. 4th at 496-497, which operates as a judgment of dismissal on the merits, which is res judicata and bars any later lawsuit by Plaintiffs on the same causes of action. California Practice Guide: Civil Procedure Before Trial at ¶ 8:2340 (The Rutter Group, 2025 Ed.) (*citing Kahn v. Kahn* (1977) 68 Cal. App. 3d 372, 381-382).

While Plaintiffs argue that the Court has no jurisdiction to impose terminating sanctions for violating the Court’s March 14, 2025 Discovery Orders because Plaintiffs filed a request to dismiss this case without prejudice on July 24, 2025 (Opposition at p. 2, ¶ 1), that argument fails because, as held by the Second District Court of Appeal, “plaintiff[s] cannot defeat a defendant’s right to obtain a determination on the merits simply by filing a voluntary dismissal when statutory authority entitles the defense to a final judgment. It follows that [plaintiffs] cannot [defendant’s] motion for a terminating discovery sanction by filing a voluntary dismissal.” *Hartbrodt v. Burke* (1996) 42 Cal. App. 4th 168, 176.

As for Plaintiffs argument that the entire current proceeding on this Motion is void and of no legal effect because Plaintiff Abpikar filed for bankruptcy on July 24, 2026 (Opposition at p. 2, ¶ 5), that argument fails for two independent reasons:

First, an automatic stay triggered when an individual files for Chapter 13 bankruptcy is governed by 11 USCS § 362(a)(1), which provides that a bankruptcy “petition filed . . . operates as a stay . . . of a judicial, administrative, or other action or proceeding against the debtor[.]” 11 USCS § 362(a)(1). Construing that provision, the Second District Court of Appeal holds that “based on the plain language of section 362(a)(1), the automatic stay is inapplicable to superior court actions initiated by the debtor.” *Shah v. Glendale Fed. Bank* (1996) 44 Cal. App. 4th 1371, 1375. Here, as this civil action was initiated by Plaintiffs *against* State Farm, *Shah* makes clear that this superior court action has never been subject to an automatic stay under Section 362(a)(1). *Id.* So this Court’s August 6, 2026 Order granting State Farm’s ex parte application that set this hearing today for September 11, 2026 did not violate any automatic stay because there is no automatic stay that applies to this action brought by Plaintiffs.

Second, assuming arguendo that there was a bankruptcy stay triggered by Plaintiff Abpikar's July 24, 2026 bankruptcy petition that ever applied to this action—and it never did, *see Shah, supra*—any such stay has now expired. As Defendant points out in its Reply papers, because Plaintiff Abpikar has already filed for bankruptcy twice in the past year—he previously filed for Chapter 13 bankruptcy on February 12, 2026 in Case No.:26-50218 SLJ⁶ and that case was dismissed on March 26, 2026⁷—the automatic stay as to his July 24, 2026 bankruptcy terminated within 30 days, or on August 23, 2026, under the automatic termination provisions of 11 U.S.C. section 362(c)(3)(A).

Likewise, while Plaintiff Abpikar filed a “Emergency Motion to Extend the Automatic Stay” on August 5, 2026,⁸ the federal bankruptcy court Denied that Emergency Motion on August 10, 2026.⁹

Accordingly, even if an automatic stay triggered by Plaintiff Abpikar's July 24, 2026 bankruptcy filing ever applied to this action, that stay has expired.

For all those reasons, there is no stay ever applied to this action or exists now to prevent this Court today from exercising its broad discretion to impose terminating sanctions for Plaintiffs' multiple violations of this Court's March 14, 2025 Orders.¹⁰

⁶ As established by the Bankruptcy Docket of case, *In re Hassan Abpikar*, U.S. Bankruptcy Court (N.D. Cal.) Case No. 5:26BK50218, which is attached as **Ex. 1** to Defendant's Request for Judicial Notice—which the Court granted *supra*.

⁷ As established by the March 26, 2026 “Order and Notice of Dismissal For Failure to Comply” of case, *In re Hassan Abpikar*, U.S. Bankruptcy Court (N.D. Cal.) Case No. 5:26BK50218, which is attached as **Ex. 2** to Defendant's Request for Judicial Notice—which the Court granted *supra*.

⁸ As established by the Bankruptcy Docket of case, *In re Hassan Abpikar*, U.S. Bankruptcy Court (N.D. Cal.) Case No. 26-51140, which is attached as **Ex. 3** to Defendant's Request for Judicial Notice—which the Court granted *supra*.

⁹ As established by the August 10, 2026, “Order Denying Motion To Extend Automatic Stay” of case, *In re Hassan Abpikar*, U.S. Bankruptcy Court (N.D. Cal.) Case No. Case No. 26-51140, which is attached as **Ex. 4** to Defendant's Request for Judicial Notice—which the Court granted *supra*.

¹⁰ As for Plaintiffs remaining arguments in their Opposition, such as their sustained *ad hominem* attacks on defense counsel Todd Roberts (Opposition at pp. 2-6), they are so frivolous and scurrilous that the Court need not and will not address them.